

No. 31 of 2024

VIRGIN ISLANDS
COUNTER-TERRORISM (AMENDMENT) ACT, 2024
ARRANGEMENT OF SECTIONS

SECTION

1. Short title
2. Section 2 amended
3. Section 2A inserted
4. Schedule 4 amended

I ASSENT

**(Sgd.) Daniel Pruce,
Governor.
4th December , 2024**

VIRGIN ISLANDS

No. 31 of 2024

AN ACT TO AMEND THE COUNTER-TERRORISM ACT, 2021 NO. 33 OF 2021, TO ADDRESS CERTAIN DEFICIENCIES IDENTIFIED IN THE CARIBBEAN FINANCIAL ACTION TASK FORCE (CFATF) FOURTH ROUND MUTUAL EVALUATION REPORT IN RELATION TO TARGETED FINANCIAL SANCTIONS RELATED TO TERRORISM AND TERRORIST FINANCING AND FOR RELATED MATTERS.

[Gazetted 6th December, 2024]

ENACTED by the Legislature of the Virgin Islands as follows:

Short title

1. This Act may be cited as the Counter-Terrorism (Amendment) Act, 2024.

Section 2 amended

2. The Counter-Terrorism Act, 2021, No. 33 of 2021 (hereafter referred to as the “principal Act”) is amended in section 2 by inserting after subsection (1), the following subsections:

“(1A) In this Act, a reference to a “designated terrorist entity” means an entity whose activities directly involve acts of terrorism or the financing of terrorism.

(1B) In this Act, a reference to “relevant Security Council resolutions” does not include Security Council resolutions dealing solely with proliferation financing unless such activity directly involves acts of terrorism or the financing of terrorism.”.

Section 2A inserted

3. The principal Act is amended by inserting after section 2 the following section:

“Application

2A. For the avoidance of doubt, this Act applies only to terrorist financing activities and not to obligations under resolutions dealing solely with proliferation financing unless such activity directly involves acts of terrorism or the financing of terrorism.”.

Schedule 4 amended

4. The principal Act is amended in Schedule 4 as follows:

(a) in paragraph 2

(i) by inserting after subparagraph (1), the following subparagraph:

“(1A) A person under subparagraph (1) shall not be reckless as to whether the designated terrorist entity is dealing with the funds or economic resources referred to in that subparagraph.”;

(ii) in subparagraph (2), by deleting the words “subparagraph (1)” and substituting the words “this paragraph”;

(iii) by deleting subparagraph (4) and substituting the following subparagraph:

“(4)Where a person under subparagraph (1) who

(a) knows or has reasonable cause to suspect; or

(b) is reckless as to whether,

the designated terrorist entity is dealing with the funds or economic resources referred to in that subparagraph and does not freeze such assets or economic resources as required by that subparagraph, that person commits an offence and is liable

(i) on summary conviction, to a term of imprisonment of 5 years or to a fine not exceeding \$100,000, or both; or

(ii) on conviction on indictment, to a term of imprisonment of 7 years or to a fine not exceeding \$250,000, or both.”; and

(iv) in subparagraph (6), by inserting after the words “did not know”, the words “, was not reckless as to whether,”;

(b) in paragraph 3

(i) by inserting after subparagraph (1), the following subparagraph:

- “(1A) A person under subparagraph (1) shall not be reckless as to whether the person is making the funds or financial services available to the designated terrorist entity.”; and
- (ii) in subparagraph (3), by inserting after the words “subparagraph (1)” the words “or (1A)”;
- (c) in paragraph 4
- (i) by inserting after subparagraph (1), the following subparagraph:
- “(1A) A person under subparagraph (1) shall not be reckless as to whether the person is making or will be making the funds, financial services or other related services available for the benefit of the designated terrorist entity.”; and
- (ii) in subparagraph (4), by inserting after the words “subparagraph (1)” the words “or (1A)”;
- (d) in paragraph 5
- (i) by inserting after subparagraph (1), the following subparagraph:
- “(1A) A person under subparagraph (1) shall not be reckless as to whether
- (a) the person is making the economic resources available to the designated terrorist entity; and
- (b) the designated terrorist entity is likely to exchange the economic resources, or use them in exchange, for funds, goods or services.”; and
- (ii) in subparagraph (3), by inserting after the words “subparagraph (1)” the words “or (1A)”;
- (e) in paragraph 6
- (i) by inserting after subparagraph (1), the following subparagraph:
- “(1A) A person under subparagraph (1) shall not be reckless as to whether the person is making or will be making the economic resources so available for the benefit of the designated terrorist entity.”; and
- (ii) in subparagraph (3), by inserting after the words “subparagraph (1)” the words “or (1A)”;
- (f) in paragraph 9, by inserting after subparagraph (3), the following subparagraphs:
- “(3A) A licence under this paragraph shall be for the following purposes:

- (a) basic expenses, including payments for foodstuffs, monthly family expenses, rent or mortgage, medicines and medical treatment, taxes, insurance premiums, and public utility charges;
- (b) payment of reasonable professional fees and reimbursement of incurred expenses associated with the provision of legal services;
- (c) fees or service charges for routine holding or maintenance of frozen funds or other financial assets or economic resources; and
- (d) extraordinary expenses, provided that the Governor has
 - (i) notified the relevant United Nations Sanctions Committee; and
 - (ii) the Governor is satisfied that there is no objection to the request for such expenses.

(3B) This paragraph shall apply to designations made under UNSCR 1373.”;

- (g) in paragraph 12(2), by deleting the words “as soon as is reasonably practicable” and substituting the word “immediately”; and
- (h) in paragraph 13(1)(a)(ii), by deleting the words “sections 5, 7 to 10 and 12 to 31 of this Act” and substituting the words “paragraphs 2 to 6 of this Schedule”.

Passed by the House of Assembly this 29th day of October, 2024.

(Sgd.) Corine N. George-Massicote,
Speaker.

(Sgd.) Bethsaida Smith-Hanley,
Clerk of the House of Assembly.